

7.	<i>The Water-Gardens Owners Association vs. Jaurigue</i> 2017-00936532	Before the court is the motion to enforce settlement and enter judgment pursuant to Code of Civil Procedure section 664.6 filed by plaintiff The Water-Gardens Owners Association (Plaintiff) against defendants John F. Jaurigue and Priscilla Jaurigue (collectively, Defendants). The motion is GRANTED IN PART and DENIED IN PART as set forth below. "If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement." (Code Civ. Proc., § 664.6.) "A court ruling on a motion under Code of Civil Procedure section 664.6 must determine whether the parties entered into a valid and binding settlement. [Citations.] A settlement is enforceable under section 664.6 only if the parties agreed to all material settlement terms. [Citations.] The court ruling on a motion may consider the parties' declarations and other evidence in deciding what terms the parties agreed to, and the court's factual findings in this regard are reviewed under the substantial evidence standard. [Citations.] If the court determines that the parties entered into an enforceable settlement, it should grant the motion and enter a formal judgment pursuant to the terms of the settlement. [Citation.] The statute expressly provides for the court to 'enter judgment pursuant to the terms of the settlement.' [Citation.]" (<i>Hines v. Lukes</i> (2008) 167 Cal.App.4th 1174, 1182.) Plaintiff moves for an order enforcing the settlement agreement (Settlement) made orally before the court on May 9, 2019, and entering judgment against Defendants in the sum of \$60,453.31. The transcript of the May 9, 2019 hearing and the minute order regarding the hearing both reflect the court retained jurisdiction pursuant to Code of Civil Procedure section 664.6 to enforce the Settlement. (See Ex. A to Emsiek Decl.) The transcript shows Plaintiff's board president, Thomas Babcock, appeared at the hearing with Plaintiff's counsel, David Mangikyan from The Judge Law Firm, ALC. Also present at the hearing was defendant Priscilla Jaurigue and Defendants' counsel, Michael A. Cisneros. Defendant John F. Jaurigue was not present at the hearing. The temporary judge presiding over the settlement conference, Emmett
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		Raitt, read the terms and condition of the Settlement into the record. (See Reporter’s Transcript pp. 3-4.) The court finds Plaintiff established it is entitled to entry of judgment in the sum of \$60,453.31 as to Priscilla Jaurigue only. Although a written settlement agreement and stipulation for entry of judgment was not executed as contemplated by the parties, this does not affect the enforceability of the oral settlement where, as here, “the respective parties orally agreed upon all of the [material] terms and conditions of a proposed written agreement with the mutual intention that the oral agreement should thereupon become binding[.] [T]he mere fact that a formal written agreement to the same effect [was] not . . . signed [by all of the parties] does not alter the binding validity of the oral agreement [on the parties who gave their assent before the trial court].” (<i>Elyaoudayan v. Hoffman</i> (2003) 104 Cal.App.4th 1421, 1430.) The transcript of the proceeding reflects the parties reached a settlement of the case, all the terms of the Settlement were recited on the record, and Plaintiff and Ms. Jaurigue understood and agreed to the terms of the Settlement as stated in court. Under these circumstances, the failure to execute the written documents as contemplated by the agreement does not render the Settlement unenforceable. The terms of the Settlement show Plaintiff’s forbearance from executing on the stipulated judgment was conditioned on Defendants filing a legal malpractice action against their prior bankruptcy counsel within 30 days, prosecuting in good faith and with due diligence, and remitting the net proceeds to Plaintiff up to \$60,453.31. Defendants failed to perform those conditions as the legal malpractice action, <i>Jaurigue v. Kyllander</i>, Orange County Superior Court Case No. 30-2019-01100466-CU PN-CJC, was dismissed on or about March 28, 2022, for failure to prosecute. (Emsiek Decl., ¶ 6.) Plaintiff’s counsel states Defendants paid the \$4,000 contemplated by the Settlement, but Defendants never remitted any net proceeds of the legal malpractice action to Plaintiff, and the \$60,453.31 balance owed under the Settlement remains wholly unpaid. (Emsiek Decl., ¶¶ 4, 7.) Plaintiff therefore seeks entry of judgment in the stipulated sum of \$64,453.31, less the \$4,000 credit, for a net judgment of \$60,453.31. (Emsiek Decl., ¶ 9.)
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		Based on the foregoing, Plaintiff has shown it is entitled to a stipulated judgment in the requested sum of \$60,453.31 against Priscilla Jaurigue. Plaintiff, however, has not shown the Settlement is enforceable against defendant John F. Jaurigue, who was not present in court when the Settlement was reached and did not state his accepted thereof or agreement thereto. When discussing the legal standards for motions to enforce settlements under section 664.6, Plaintiff cites <i>Wackeen v. Malis</i> (2002) 97 Cal.App.4th 429, which actually refutes Plaintiff's contention that Mr. Jaurigue is bound by the Settlement. The Court of Appeal in <i>Wackeen</i>, when discussing the requirements for a valid section 664.6 request for retention of jurisdiction, stated "courts have held that stipulated settlements must be signed by the parties themselves, or agreed to by the parties themselves in open court, and it is not sufficient for their attorneys or spouses to sign the writing [citations] or voice the agreement in open court [citation]. Like the stipulated settlement itself, a request that jurisdiction be retained until the settlement has been fully performed must be made either in a writing signed by the parties themselves, or orally before the court by the parties themselves, not by their attorneys of record, their spouses, or other such agents." (<i>Wackeen v. Malis, supra</i>, 97 Cal.App.4th at p. 440.) Indeed, <i>Williams v. Saunders</i> (1997) 55 Cal.App.4th 1158, 1162-1163, specifically held one spouse's agreement to a settlement was not sufficient to satisfy the requirements of section 664.6 as to the other spouse; rather, the other spouse must orally agree in open court or sign the necessary documentation. The court notes the recent case of <i>Greisman v. FCA US, LLC</i> (2024) 103 Cal.App.5th 1310, held "as applied to oral settlements stipulated before the court, current section 664.6 does not require that the parties themselves orally stipulate, and instead allows counsel for the parties to orally stipulate on their behalf." (<i>Id.</i>, at p. 1326.) <i>Greisman</i>, however, involved a version of section 664.6 that became effective January 1, 2021, after the settlement agreement in the instant matter was reached. (See <i>Id.</i> at p. 1324.) As the foregoing authorities hold, the prior versions of section 664.6, including the one in effect with the settlement in this case was reached, required the assent of the party. Generally, statutes do not have retroactive effect. (<i>Evangelatos v. Superior Court</i> (1988) 44 Cal.3d 1188, 1208; <i>Nabors Corporate Services, Inc. v.</i>
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		<i>City of Long Beach</i> (2025) 108 Cal.App.5th 540, 556.) Thus, it would appear <i>Greisman</i> does not apply to the instant Settlement and instead the holding in <i>Wackeen</i> and <i>Williams</i> applies. Based on the foregoing, the motion is GRANTED as to Priscilla Jaurigue and DENIED as to John F. Jaurigue. Counsel for Plaintiff is to submit a proposed order/judgment in accordance with this ruling. Counsel for Plaintiff is ordered to give notice of this ruling.
8.	<i>Claim of Mavromatis</i> 2026-01563873	Before the court is the motion of petitioner People of the State of California (Petitioner) for default and default judgment of forfeiture pertaining to \$35,532.00 in United States Currency seized on December 29, 2025, by the Irvine Police Department from the residence of real party-in-interest Nicholas Mavromatis (Mavromatis). As more fully set forth below, the motion is GRANTED. The petition in this case was brought pursuant to Health and Safety Code section 11470, et. seq. and was timely filed within one year of seizure. (Health & Safety Code, § 11488.4(a).) Health and Safety Code section 11488.5, subdivision (a) grants any claimant to the property subject to forfeiture 30 days from the last publication of notice of the forfeiture proceedings or 30 days after receipt of actual notice to file a verified claim for the property. Section 11488.5, subdivision (b)(1), provides, "If at the end of the time set forth in subdivision (a) there is no claim on file, the court, upon motion, shall declare the property seized or subject to forfeiture pursuant to subdivisions (a) to (g), inclusive, of Section 11470 forfeited to the state. In moving for a default judgment pursuant to this subdivision, the state or local governmental entity shall be required to establish a prima facie case in support of its petition for forfeiture. There is no requirement for forfeiture thereof that a criminal conviction be obtained in an underlying or related criminal offense." "Health and Safety Code section 11488.4 provides for three types of notice of forfeiture proceedings. [Citation.] First, a person from whom property is seized and who is named in a receipt for the seized property is entitled to service of process of the petition of forfeiture. (Health & Saf. Code, § 11488.4, subd. (c).) Second, notice of the seizure or of an intended forfeiture proceeding along with instructions for filing a claim is 'to be served by personal delivery or by registered mail upon any person who has an interest in the